

11. 25CV01688 Pressley, Ronald v. General Motors, LLC

EVENT: Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b)

Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b) is GRANTED. A Case Management Conference is hereby scheduled for July 15, 2026 at 10:30am. Additionally, consistent with the Legislature's intent in enacting CCP 871.26, the parties are ordered to mediate this case within 150 days of this order.

Plaintiff shall prepare a form of order consistent with this ruling within 2 weeks.

12. 25CV03376 Li, Yi v. AMCAL Chico, LLC et al.

EVENT: Plaintiff's Motion for Leave to File Second Amended Complaint

Plaintiff's Motion for Leave to File Second Amended Complaint is denied. On May 17, 2026 Plaintiff attempted to file a proof of service with the Court. That proof of service does not demonstrate that this motion was served – rather it is a proof of service re: "Notice Regarding Electronic Service". Additionally, CRC 3.1300 requires the proof of service be filed no later than five court days before the hearing.

Further, CCP 1013b sets forth the requirements for a proof of service when service is accomplished via e-mail. The proof of service submitted does not satisfy the requirements of CCP 1013b: it does not set forth "the exact title of the document served and filed in the cause", which in this case should have been the initial motion; and the proof of service does not state the date for which the moving papers were served.

As Plaintiff appears to have elected to use electronic service as the primary means of service, Plaintiff is directed to comply with CCP 1013b when filing future proofs of service. Best practices dictate a proof of service should be filed contemporaneously with the underlying document.